

monitor the docket. On June 15, 2026, defense counsel saw the docket reflected an entry of default as against Capitol City that predated the May 28, 2026 answer and only received notice the answer had been rejected on June 24, 2026. Defense counsel reached out to plaintiff's counsel regarding setting aside default by stipulation, but plaintiff's counsel did not respond to the request. Defendant has shown sufficient "mistake, inadvertence, surprise, or excusable neglect" within the meaning of Code of Civil Procedure section 473(b).

Defense counsel also declares that Capitol City did not receive the service of summons and complaint, while also acknowledging that the proof of service appears to show facially valid service. As the motion is not brought pursuant to Code of Civil Procedure section 473.5, this information is extraneous to the instant motion. Plaintiff's evidence that plaintiff's counsel had reached out to defense counsel prior to the entry of default to enquire whether counsel was representing both defendants and that defense counsel did not respond shows that both counsel would be best served by timely responding to their correspondence; however, this evidence does not provide a basis on which to deny the motion.

Based on the foregoing, the motion is granted. Default of defendant Capitol City entered May 18, 2026 is hereby set aside. Defendant Capitol City shall file and serve its answer to the complaint by September 18, 2026.

17. S-CV-0058373 Arbaugh, Matthew v. Kennedy, Wayne

Order to Show Cause re Preliminary Injunction

Plaintiff seeks a preliminary injunction against defendants Wayne Kennedy, Lars Nielsen, and Eric Webb pursuant to Code of Civil Procedure sections 526 and 527.

Before reaching the merits of this motion, there are a number of procedural issues that must be addressed. Preliminarily, there is no evidence in the court's file the August 3, 2026 application for TRO and OSC re preliminary injunction were ever served on any party, nor is there any evidence in the court's file that the summons and complaint were served on any party. These issues are raised by defense counsel James A. Fillipin. While the issue of service of the moving papers may have been waived by all three named defendants filing substantive oppositions, plaintiff is nonetheless directed to promptly serve the summons, complaint, and moving papers on all defendants if he has not already done so and shall file proofs of service as appropriate.

Defendant Eric Webb submits his opposition to preliminary injunction and declaration in support thereof. However, his declaration is not signed under penalty of perjury pursuant to Code of Civil Procedure section 2015.5. Defendant is afforded the opportunity to re-file the declaration, ensuring it is signed and dated pursuant to Code of Civil Procedure section 2015.5.

The court on its own motion continues the order to show cause hearing re preliminary injunction to be heard on **October 20, 2026 at 8:30 a.m. in Department 32**. The temporary restraining order issued on August 5, 2026 shall continue until the court rules on the preliminary injunction. Other than the few documents outlined above, no further briefing is permitted.
